

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONXIndex No.:
Date Purchased:-----X
LUIS RIVERA,

Plaintiff,

-against-

SUMMONSPlaintiff designates
BRONX County as the
place of trialCITY OF NEW YORK, Det. MARICELA GALINDEZ,
Det. ABDIEL R. ANDERSON and UNDERCOVER
POLICE OFFICER, name presently unknown and
OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,Defendants.
-----XThe basis of venue is:
CPLR 504 (3)15 JUN 29 PM 2:49
COUNTY CLERK
BRONX COUNTY

RECEIVED

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and

serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
June 23, 2015By: **JONATHAN L. GLEIT, ESQ.**
*Attorney for Plaintiff*888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007Det. Maricela Galindez, Shield No. 002821, Det. Abdiel R. Anderson, Shield No. 1429, Undercover Officer
all of the NARCBBX, 1 Police Plaza, OCCB Room 1310, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
LUIS RIVERA,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. MARICELA GALINDEZ,
Det. ABDIEL R. ANDERSON and UNDERCOVER
POLICE OFFICER, name presently unknown and
OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Defendants.
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Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF LUIS RIVERA

1. At the time of the commencement of this action, plaintiff LUIS RIVERA was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about July 27, 2014, Det. MARICELA GALINDEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about July 27, 2014, at approximately 1 A.M., Det. MARICELA GALINDEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about July 27, 2014, Det. ABDIEL R. ANDERSON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

8. That on and about July 27, 2014, at approximately 1 A.M., Det. ABDIEL R. ANDERSON was working and acting within the scope of his employment as a Police Officer, and under the color of law.

9. That on and about July 27, 2014, UNDERCOVER POLICE OFFICER, whose name is unknown and presently unknowable by Plaintiff, but necessarily known by defendants by virtue of his involvement with the subject incident, was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about July 27, 2014, at approximately 1 A.M., UNDERCOVER POLICE OFFICER was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about July 27, 2014, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

12. That on and about July 27, 2014 approximately 1 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

13. That on or about July 27, 2014 at approximately 1 A.M., inside 575 East 168th Street, Bronx, New York, the plaintiff LUIS RIVERA was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine LUIS RIVERA.

14. That on July 27, 2014, shortly prior to the above noted time, UNDERCOVER POLICE OFFICER approached plaintiff and asked plaintiff, in sum and substance, if he could supply UNDERCOVER POLICE OFFICER with illegal narcotics, and plaintiff told UNDERCOVER POLICE OFFICER, in sum and substance, "no, I don't know about drugs".

15. That thereafter plaintiff returned to his address, and at the above time and place, was stopped and improperly searched, during which search, Det. ABDIEL R.

ANDERSON did place in plaintiff's boot, some objects. Det. ABDIEL R. ANDERSON then removed the objects from plaintiff's boot, and said, in sum and substance, "what's this", to which plaintiff responded, in sum and substance, "you should know, you just put it there".

16. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

17. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

18. That defendants, their agents, servants and/or employees continued to detain plaintiff and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

19. That the defendants Det. MARICELA GALINDEZ, Det. ABDIEL R. ANDERSON and UNDERCOVER POLICE OFFICER and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the

criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

20. That defendants, their agents, servants and/or employees continued to prosecute plaintiff without a reasonable belief that the prosecutions would succeed, and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

21. That all criminal charges brought against plaintiff LUIS RIVERA, which was brought under docket number 2014BX040029, in the Criminal Court of the City of New York, Bronx County, regarding the incidents of July 27, 2014, were dismissed by the Honorable Judge Shari Ruth Michels, a Judge of the Court, on February 24, 2015.

22. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of LUIS RIVERA

23. As a result of the malicious prosecution, plaintiff was deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately two hundred and twelve days.

24. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without

any basis in law or fact, and plaintiff being aware of his unlawful confinement, was thereby causing fright, shock, emotional distress and physical consequences.

25. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population, and testify falsely so often, omitting such acts or fabricating evidence under pretext, that such conduct is considered routine by the offending officers, without reprimand to the offending officers.

26. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy, practice, procedure and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

27. Additionally, defendants as named herein have condoned, permitted and caused a policy, practice and procedure of arresting persons, almost exclusively minority persons in localities where the majority of the population are of a racial minority, under

the pretense of violating Penal Laws which specify the crime of possession of things where the arrested persons do not so possess, and falsely swearing that they observed innocent persons in possession of such things for the purposes of satisfying arrest quotas and to humiliate and subjugate said minority persons, and thereafter searching said individuals without the above mentioned requisite articulable factual basis supporting a reasonable suspicion to believe the arrestee secreted evidence, for the same purposes.

28. Furthermore, as a result of the aforementioned pressure to satisfy arrest quotas, and the reliance on statistical and numerical 'productivity goals', the CITY OF NEW YORK created, allowed, condoned, permitted and caused a policy and procedure of permissive and pervasive perjury by officers of the NEW YORK CITY POLICE DEPARTMENT, whereby false testimony is so common, without reprimand or bone fide internal investigation, that it has become routine, and is evidenced by multiple arrests of detectives of the Narcotics Division exemplified by, for instance, the 2008 guilty plea of Det. Stephen Anderson for official misconduct, and who thereafter testified in open court that detectives in the Narcotics Division of the NYPD routinely 'planted' drugs on innocent people for reasons including the satisfaction of arrest quotas, which led, in part to the 2011 conviction of Detective Jason Arbeeney for undertaking such illegal acts, and

whereat the presiding Justice Gustin L. Reichbach stated, on the record, that the practice of planting drugs on innocent persons was 'pervasive'; and is further evidence by the 2011 arrest of Det. Francisco Payano; the May, 2013 conviction of Police Officer Isaias Alicea; the May 2013 conviction of Det. Debra Eager; the investigations of Det. Peter Valentin, Alberto Pizzaro, Danixon Cabrera and others for similar nefarious acts and the conspiracies constituting a subversion of justice known as the 'ticket fixing scandal', among numerous other nefarious and notorious acts and actions undertaken by officers of the New York City Police Department to subvert justice in order to satisfy arrest quotas and by creating a perverse practice of conducting illegal arrests to increase the officers own wages through overtime.

29. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by statements repeatedly made by defendants, to wit, in sum and substance, "it's a raid, we have to take everyone" and has occurred to such individuals such as ADEUNA CABRAL ,an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at approximately 7:30 A.M., at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010, at approximately 6:30 A.M; and LISA CAMACHO and JESSICA HERNANDEZ

on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York; TREENA WILSON and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30 A.M., at or near 840 Freeman Street, Bronx, New York , and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

30. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

31. The herein above described actions and omissions, engaged in under the color of law by the named defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free

from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

32. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

33. That as a result of the foregoing, the plaintiff LUIS RIVERA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF LUIS RIVERA

34. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 34 as though more fully set forth herein.

35. That on or about April 28, 2015, and pursuant to the So-Ordered Stipulation of Justice Mitchell Danziger of the Bronx County Supreme Court under Index No. 260279/15, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of

the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted, and plaintiff did testify at General Municipal Law §50h hearing of plaintiff LUIS RIVERA on May 27, 2015, and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claims are based.

36. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

37. That on or about July 27, 2014 at approximately 1 A.M., inside 575 East 168th Street, Bronx, New York, the plaintiff LUIS RIVERA was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine LUIS RIVERA.

38. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

39. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

40. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact or privilege, and plaintiff being aware of his unlawful confinement, was thereby caused fright, shock, emotional distress and physical consequences.

41. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

42. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

43. That as a result of the foregoing, the plaintiff LUIS RIVERA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF LUIS RIVERA

44. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 43 as though more fully set forth herein.

45. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

46. That defendants, their agents, servants and/or employees continued to detain plaintiff and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

47. That the defendants Det. MARICELA GALINDEZ, Det. ABDIEL R. ANDERSON and UNDERCOVER POLICE OFFICER and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby initiating and causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

48. That defendants, their agents, servants and/or employees continued to prosecute plaintiff without a reasonable belief that the prosecutions would succeed, and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

49. That all criminal charges brought against plaintiff LUIS RIVERA, which was brought under docket number 2014BX040029, in the Criminal Court of the City of New

York, Bronx County, regarding the incidents of July 27, 2014, were dismissed by the Honorable Judge Shari Ruth Michels, a Judge of the Court, on February 24, 2015.

50. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of LUIS RIVERA.

51. As a result of the malicious prosecution, plaintiff was deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately two hundred and twelve days.

52. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

53. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

54. That as a result of the foregoing, the plaintiff LUIS RIVERA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF LUIS RIVERA

55. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 54 as though more fully set forth herein.

56. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

57. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper arrest of individuals.

58. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff LUIS RIVERA was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

59. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
June 23, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
LUIS RIVERA

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Maricela Galindez, Shield No. 002821
Det. Abdiel R. Anderson, Shield No. 1429
Undercover Police Officer
all of the NARCB BX, 1 Police Plaza, OCCB Room 1310, New York, NY 1003

PLAINTIFF'S VERIFICATION

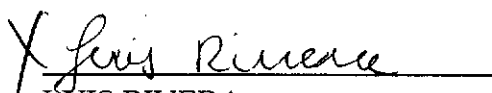
LUIS RIVERA affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


LUIS RIVERA